

not obtain local counsel).) A more reasonable amount is \$400 for associates and \$550 for partners.

Second, there was excess time spent on certain tasks. The court reduces/removes the following entries: 9/26/25 (.1) and 12/12/25 (.1) appear to be clerical work and is reduced to zero; 12/3/25 in drafting the FAC is reduced to 1.5 hours; time spent on the SAC (.8) is unreasonable when Defendant provided the 998 offer, and is reduced to zero; 10.7 hours spent on this fee motion is excessive and the court reduces the time to 5.0 hours.

As such, the court finds the following lodestar to be reasonable:

Attorney	Hours	Hourly Rate	TOTAL
Brim, Mitchel (associate)	13.5	\$400	\$5,400.00
Murray, Brian (senior associate)	.1	\$400	\$40.00
Rosenstein, Michael (partner)	7.2	\$550	\$3,960.00
TOTAL	20.8		\$9,400.00

There should be no multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4t h 1122, 1132.) The party seeking enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.) There is no basis for enhancement. This is merely double billing. Again, this was not a complicated case. As to the skill, again, there was no exceptional quality of work in this case to justify a multiplier.

As to costs, Plaintiffs only demonstrate \$1,008.01—all of which are attorney service fees. However, contrary to the reply, they do not correspond with specific billing entries.

Plaintiffs HAS SINCE THE REPLY WAS FILED provided invoices for the costs. Defendant does not challenge the costs. The court awards the full amount as requested.

4.

CASE #	CASE NAME	HEARING NAME
RIC2002390	CARLSON D.O. VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO TAKE PLAINTIFF'S MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT OFF CALENDAR OR, IN THE ALTERNATIVE, TO DENY AS UNTIMELY

Tentative Ruling: GRANTED

5.

CASE #	CASE NAME	HEARING NAME
RIC2002390	CARLSON D.O. VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR JUDGMENT NOTWITHSTANDING VERDICT

Tentative Ruling: OFF CALENDAR